

Tentative Rulings for September 17, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104400	TANG VS AMERICAN EVERGLOW REGIONAL CENTER, LLC	MOTION TO ATTORNEYS FEES

Tentative Ruling:

Continue the hearing on the motion to November 18, 2026, at 8:30am, D-4. Plaintiff to provide further billing information to the court by October 30, 2026. Defendant will be allowed to file a further opposition addressing the new billing information, to be filed by November 10, 2026.

The court finds that Plaintiff's request is unreasonable on its face.

A court may reduce fees where it is unreasonable to have so many attorneys staffing a case in a non-complex case. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 38-39.) Here, Plaintiff is seeking to recover for 5 partners, 1 senior associate, 1 senior counsel, 1 associate, and various paralegals. This is excessive for this type of case.

"To the extent a trial court is concerned that a particular award is excessive, it has broad discretion to adjust the fee downward or **deny an unreasonable fee** altogether." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138 [emphasis added].) As explained by one court:

"Prevailing parties are compensated for hours reasonably spent on fee-related issues. A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether, 'If ... the Court were required to award a reasonable fee when an outrageously unreasonable one has been asked for, claimants would be encouraged to make unreasonable demands, knowing that the only unfavorable consequence of such misconduct would be deduction of their fee to what they should have asked in the first place. To discourage such greed, a severer reaction is needful. ...' "

(*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635.)

It is difficult to determine if the hours spent are reasonable. Rather than provide billing records, Plaintiff submits a table for each law firm, expanding on 18 categories. Some of these categories are unclear: (4) case administration; (8) other motions; (10) service of documents; (15) damages calculations. It is unclear what these constitute. Some are just merely excessive on its face, see for example: 78.45 hours drafting the pleadings; 200.32 hours on a receivership motion; 57.35 hours on case management conference.

Without billing records, the court cannot ascertain whether these hours are reasonably incurred. Providing a chart just demonstrates that the fees are excessive on its face. Further, it is clear that there is block billing based on the categories. Fee motions must

be based on detailed time records. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 272.) Absent detailed billing records, the court will deny the motion.

Plaintiff to submit billing records, with redactions if necessary, by October 30, 2026.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN VS BMW NORTH AMERICA, LLC	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

GRANT, in part, as modified.

A Protective Order shall issue ordering as follows:

(1) If the deposition is to be conducted via Zoom, all individuals participating in the deposition are required to turn their cameras on and identify themselves for the record. “Participating” includes simply observing the deposition and not actively questioning the deponent. (2) Both sides are limited to no more than five (5) attorneys each at the deposition. (3) The Zoom link to be used shall be password protected.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2304403	KANDILIAN VS BMW NORTH AMERICA, LLC	MOTION TO COMPEL

Tentative Ruling:

GRANT the motion. The deposition of Defendant’s expert, Travis Brown, shall go forward at a mutually convenient date within 30 days from today’s date. The deposition shall be subject to the protective order issued by the court today (*supra*).

4.

CASE #	CASE NAME	HEARING NAME
CVRI2505351	MOLINA VS GENERAL MOTORS LLC, A DELAWARE LIMITED LIABILITY COMPANY	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

GRANT Plaintiffs’ motion for attorney fees and costs in the reduced, reasonable amount of **\$8,190.99** (\$7,140.00 in attorney fees plus \$1,050.99 in costs), payable to Plaintiff’s counsel within 30 days.

Plaintiff counsel's requested hourly rates are excessive for the Riverside geographic area. The hourly rate permitted shall be reduced to \$350 per hour. The court will strike Attorney Whelan's entry of 0.9 for pre-retention services. Attorney fees are only recoverable once the attorney-client relationship has been established. The court will strike 0.6 hours from Attorney Valitskaya's billing for administrative and clerical tasks, such as scheduling depositions, updating internal case files, and drafting internal memoranda. Counsel also seeks 7 hours of attorney time for "wrap-up fees" (to review the opposition, draft a reply, and attend the hearing on the fee motion). This is excessive. Attorney Pridham has already billed 3 hours to draft the fee motion. There is no reason that such a routine fee motion should take more than 4 hours to draft and defend. The court will strike 6 hours from the wrap-up fee request. Hence, the court awards fees for Timothy Whelan of \$2,625 (7.5 hours at \$350 per hour), for Aliaksandra Valitskaya of \$3,115 (8.9 hours at \$350 per hour), for Grenville Pridham of \$1,050 (3 hours at \$350 per hour) and for 1 hour of wrap-up for \$350. Total billable time is 20.4 hours at \$350 per hour for total attorney fees of \$7,140. No multiplier is warranted or awarded.

Plaintiff is also awarded the entire claimed costs of \$1,050, as the costs requested are recoverable.

The total award to Plaintiff for fees and costs is \$8,190.99.

The court orders that the Memorandum of Costs filed by Plaintiff on 7/26/26 be stricken so as to prevent double recovery of court costs.